

NELSON v BROWN, et al

25CV47918

DEFENDANT’S MOTION TO SET ASIDE DEFAULT

This is an action arising out of the alleged theft of the personal property of Plaintiff Curtis P. Nelson (“Plaintiff”) by Defendants Grant F. Brown (“Brown”) and Michael J. Cooley (“Cooley.”)

Now before the Court is Defendant Brown’s Motion to Set Aside Default.

I. RELEVANT PROCEDURAL HISTORY

On February 28, 2025, Plaintiff filed a complaint against Defendants. Plaintiff filed a proof of service showing that Brown had been personally served on April 21, 2025. On June 30, 2025, the Court entered a judgment after default awarding Plaintiff a total judgment of \$22,050.00.

Brown filed his motion for relief from default on July 2, 2025.

II. Legal Standard and Analysis

Code Civil Procedure section 473(d) authorizes the Court to vacate a judgment that is void while section 473(b) permits the Court to set aside a judgment entered because of mistake, inadvertence, surprise, or excusable neglect. Because courts favor resolution on the merits, “when a party in default moves promptly to seek relief, very slight evidence is required to justify a trial court's order setting aside a default.” (*Shamblin v. Brattain* (1988) 44 Cal.3d 474, 478-479 [citation omitted].)

Brown moves for relief on two grounds. First, Brown states that his co-Defendant was shot in the face and has been hospitalized; however, it is unclear if Mr. Brown was also injured and hospitalized raising questions as to whether this is an appropriate basis for relief. Brown also states that he believed that he could provide a response to the Complaint at the Case Management Conference on July 2, 2025, and did not realize he needed to Answer before that.

Defendant, who is representing himself *pro se*, did not wait an inordinate amount of time to seek relief from default. Instead, he filed his motion only a few days after the default was entered.

“The law favors judgments based on the merits, not procedural missteps. Our Supreme court has repeatedly reminded us that in this area doubts must be resolved in favor of relief, with an order denying relief scrutinized more carefully than an order granting it.” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.) Further, courts do not tend to reward gamesmanship. (*Solorzano v. Koutures* (2021) 2021 Cal. Super LEXIS 116272 [relief from default is almost routinely given at early stages of proceedings, and going through the process of filing for default “increases the costs of litigation and wastes precious judicial resources and smacks of gamesmanship.”].)

Given Brown’s assertion that his co-Defendant was seriously injured, that he believed he could respond at the July 2, 2025, CMC, and that he took immediate steps to seek relief from judgment, the Court finds Brown has presented substantial justification for setting aside the default.

For the foregoing reasons, Brown’s motion to vacate default judgment is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant Brown to prepare a formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling. Defendant Brown is to file an Answer by 3:00 p.m. on September 12, 2025.

GREENROOT v WEBSTER, et al

25CV48032

DEFENDANT WEBSTER'S DEMURRER, MOTION TO STRIKE, and MOTIONS TO COMPEL

This case involves a contract dispute concerning real property brought by Lorna Greenroot ("Plaintiff") against Penelope Webster ("Penelope"), Randy Webster ("Randy") (collectively "Websters") and Gregory Stanley ("Stanley.") Now before the Court are a demurrer and motion to strike brought by the Websters, as well as motions to compel discovery responses.

The demurrer and motion to strike appear to be based on the Third Amended Complaint which was attached as an exhibit to the Plaintiff's motion for leave to file an amended complaint ("Exhibit TAC.") The Exhibit TAC does not match the TAC filed by the Plaintiff, because while it contains the same causes of action, the filed TAC lacks all factual allegations set forth in the Exhibit TAC. In the interests of judicial economy, the Court will consider the substantive merits of the demurrer and motion to strike as to the Exhibit TAC. (For the remainder of this ruling, "TAC" will be used to refer to the Exhibit TAC.)

Plaintiff did not file any opposition to the motions.

I. Background

Plaintiff filed her original complaint on April 30, 2025, against Webster, alleging causes of action for: 1) quiet title, 2) breach of contract, and 3) unjust enrichment. Before Defendant filed an Answer, Plaintiff filed a First Amended Complaint ("FAC") against Webster which removed the cause of action for unjust enrichment.

On May 20, 2025, Webster filed a Cross-Complaint for 1) breach of lease agreement, 2) breach of lease to own agreement, 3) declaratory relief, 4) slander of title, 5) elder abuse, and 6) ejectment.

On May 22, 2025, Plaintiff sought leave to file a Second Amended Complaint against Webster in order to clarify her own theories of relief and rebut Webster's allegations in the cross-complaint. Webster had offered to stipulate to this amendment but Plaintiff did not respond to such stipulation. (Defendant's notice of non-opposition.)